

Diplomatic Immunities (Conferences With Common-Wealth Countries And Republic of Ireland) Act, 1961

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Diplomatic Immunities (Conferences With Common-Wealth Countries And Republic of Ireland) Act, 1961

UNION OF INDIA

India

Diplomatic Immunities (Conferences With Common-Wealth Countries And Republic of Ireland) Act, 1961

Rule

DIPLOMATIC-IMMUNITIES-CONFERENCES-WITH-COMMON-WEALTH-COUNTRIES-AND-REPUBLIC-OF-IRELAND-
-ACT-1961 of 1961

Published on 2 March 1961

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Diplomatic Immunities (Conferences With Common-Wealth Countries And Republic of Ireland) Act, 1961

9.

and 10 Eliz 2, c.11

1505.

[2nd March 1961.]

An Act to provide for conferring certain immunities on representatives of Governments of Common wealth Countries and of the Republic of Ireland attending conferences in the United Kingdogi,and on their staffs.

1.

Diplomatic immunities of Commonwealth representatives attending conferences.-

(1)

Where a conference is held in the United Kingdom and is attended by representatives of Her Majesty's Government in the United Kingdom and of the government or governments of one or more countries to which this section applies, the Secretary of State may compile a list of representatives of the last-mentioned government or governments attending the conference and members of their official staffs, and cause that list to be published in the London, Edinburgh and Belfast Gazettes, and every representative of a government to which this section applies who is for the time being included in the list shall, for the purpose of any enactment [* *]

[Words "and rule of law" omitted by Act 1964, C. 81.]

or custom relating to the immunities of an envoy of a foreign Sovereign Power accredited to Her Majesty and of the retinue of such an envoy, be treated as if he were such an envoy and subject to the provisions of this section, such of the members of his official staff as are for the time being included in the list shall be treated for the purpose aforesaid as if they were his retinue.

(2)

Whenever it appears to the Secretary of State that any person ceases or begins to be qualified for inclusion in a list compiled under the foregoing sub-section he may amend the list and cause a notice of the amendment or, if he thinks fit, an amended list to be published in the London, Edinburgh and Belfast Gazettes.

(3)

Every list or notice published under this section in relation to any conference shall include a statement of the date from which the list or amendment takes or took effect; and the fact that any person is or was included or not included at any time among the persons entitled to diplomatic immunities as representatives attending the conference or as members of the official staff of any such representative may, if a list of those persons has been so published, be conclusively proved by producing the Gazette containing the list or, as the case may be, the last list taking effect before that time, together with the Gazettes (if any) containing notices of the amendments taking effect before that time, and by showing that the name of that person is or was at that time included or not included in the said list.

(4)

A person who is a member of the official staff or a representative of the government of a country to which this section applies and is [* * *]

[Certain words omitted by Act, 1964, C. 81.]

not [* * *]

[Certain words omitted by Act, 1964, C. 81.]

entitled under the foregoing provisions of this section to any immunity except in respect of things done or omitted to be done in the course of the performance of his duties, [* * *]

[Certain words omitted by Act, 1964, C. 81.]

shall be entered in a separate part of any list compiled by the Secretary of State under sub-section (1) of this section.

(5)

The countries to which this section applies are Canada, Australia, New Zealand, the Union of South Africa, India, Pakistan, Ceylon, Ghana, the Federation of Malaya, Nigeria, the Federation of Rhodesia and Nyasaland and the Republic of Ireland.

2.

Power to extend section 1 to other Commonwealth countries.-

(1)

Her Majesty may by Order in Council provide for including among the countries to which the foregoing section applies any country specified in the Order, being a country within the Commonwealth.

(2)

No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft thereof has been laid before Parliament and approved by resolution of each House of Parliament.

3.

Short title and extend.-

(1)

This Act may be cited as the Diplomatic Immunities (Conferences with Commonwealth Countries and Republic of Ireland) Act, 1961.

(2)

This Act extends to Northern Ireland.

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